

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Cathy Pearson	Date: March 27, 2023
Court Reporter: Tammy Hoffschidt	

CASE NO. 18-cv-00997-RM-KLM

Parties

DUKE UNIVERSITY and
ALLERGAN SALES, LLC,

Plaintiffs,

v.

SANDOZ INC.,

Defendant.

Counsel

Lisa Pensabene
Kathryn Reilly
Jacob Rey
Hassen Sayeed
Timothy Durst

Thomas Filarski
Richard Kornfeld
Vishal Gupta
Robert Kappers
Katherine Tellez

COURTROOM MINUTES

JURY TRIAL – Day 1

Court in session: 8:33 a.m.

Appearances of counsel. Also present with Plaintiffs are Justin Chauncey and Lisa Decaro. Also present with Defendant are Neema Kumar and Jason Rudd.

Preliminary remarks made by the Court.

Discussion held regarding notebooks to be provided to the jury containing stipulations and patent information.

Discussion held and argument given regarding Plaintiffs' objections to slides to be used by Defendant during opening statements.

The Court states findings regarding the slides to be used by the defendant during opening statements.

ORDERED: The slide in question shall not be used by the defendant during opening statements.

Discussion held regarding certain stipulations.

Discussion held and argument given regarding Defendant's objection to slides to be used by Plaintiffs during opening statements.

The Court states findings regarding slides (2, 25, 31) to be used by Plaintiffs during opening statements.

ORDERED: Slide 2 may be used by Plaintiffs during opening statements as instructed on the record. Slides 25 and 31 may also be used by Plaintiffs during opening statements.

Discussion held regarding a motion in limine as to collateral estoppel, stipulated exhibits, and challenges for cause.

Court in recess: 9:00 a.m.

Court in session: 9:30 a.m. Jury panel is present.

Preliminary remarks made by the Court.

9:32 a.m. Jury panel is sworn on voir dire.

Voir dire conducted by the Court.

Jurors excused for cause:

1. 100472445
2. 100453346
3. 100471304
4. 100443636

Court in recess: 10:34 a.m.

Court in session: 11:01 a.m.

The Court notes Juror 100428535 did not return after the morning break, and a replacement juror is called.

ORDERED: A summons shall issue for an Order to Show Cause as to why Juror 100428535 should not be held in contempt of court.

Voir dire by the Court continues.

11:18 a.m. Voir dire conducted by Ms. Reilly.

11:47 a.m. Voir dire conducted by Mr. Kornfeld.

12:14 p.m. At the bench, discussion held regarding challenges for cause.

In open court:

Jurors excused for cause:

5. 100428535 (did not return after morning break – see above order).
6. 100428918
7. 100425762

12:22 p.m. Counsel exercise their peremptory challenges.

Plaintiffs' peremptory challenges:

1. 100440599
2. 100433391
3. 100429758

Defendant's peremptory challenges:

1. 100437815
2. 100428915
3. 100456318

Eight jurors sworn to try the case:

1. 100460627
2. 100460498
3. 100444936
4. 100428918
5. 100447549
6. 100471871
7. 100461496
8. 100454047

12:29 p.m. Jury is excused.

Court in recess: 12:30 p.m.

Court in session: 2:00 p.m. Jury is present.

Preliminary remarks made by the Court regarding notebooks provided to the jury.

2:05 p.m. The Patent Process: An Overview for Jurors video is played for the jury.

2:20 p.m. The Court reads preliminary instructions to the jury.

Court in recess: 2:46 p.m.

Court in session: 3:00 p.m. Jury is present.

3:02 p.m. Opening statements given by Ms. Pensabene.

3:37 p.m. Opening statements given by Mr. Filarski.

Stipulations 1 through 15 are admitted.

4:22 p.m. Jury is excused until 8:45 a.m. on March 28, 2023.

Court in recess: 4:23 p.m.

Total in court time: 5:09

Hearing continued.